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File No.: EXP202200460

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 8, 2021, and March 14, 2022, claims were filed with the Spanish Agency for Data Protection by A.A.A. and B.B.B. (hereinafter, claimant 1 and claimant 2 respectively).

The claim is directed against GENERAL LOGISTICS SYSTEMS SPAIN, S.A. with NIF A61441523 (hereinafter, the respondent or GLS).

The reasons for the claim are as follows:

The claimants state that they purchased a mobile terminal at a physical store of the telecommunications operator XFERA MÓVILES, indicating that the terminal would be delivered to their home, but they have not received it. They contacted the transport company, which informed them that their package had been personally picked up at its headquarters, and that the person had provided all their personal data to proceed with the pickup.

They therefore understand that there has been an identity theft and usurpation of their personal data, without the respondent having adequately safeguarded their personal data.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on January 17, 2022, the claim was forwarded to XFERA MÓVILES for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

In response to this request, the following information was received:

The claimants' terminals were picked up at the GLS company's headquarters.

The copy of the ID requested at the time of contracting is stored within a document management system whose access "is limited to the fraud department (Service Control) and profiles with auditing authority."

Information about terminal orders is stored in different logistics systems depending on the courier company managing the shipment, but in no case is a copy of the ID stored in these systems.

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The individuals who have access to the logistics systems (from the logistics department) do not have access to the document management system where copies of identity documents are stored.

The respondent entity states that "we understand that it is unlikely that the identity theft of the interested party is due to a security failure in my client's systems that affected the document management system and the logistics system; in fact, no breach of the security measures of these applications has been detected."

It also indicates that "it has contracted the logistics services associated with the shipment and receipt of terminals, routers, and other electronic devices to Interbox Technology, S.L. since July 15, 2015, which is responsible for managing and preparing the orders. The courier services are in turn subcontracted by Interbox to ASM, UPS, and Correos."

In this same line, it indicates that "for reasons that this Agency is already aware of, related to the fraud known as SIM swapping, one of the additional measures implemented by my client is the so-called secure delivery, whereby the delivery of SIM cards and terminals must be made at the interested party's home with identification of the contractor, and delivery to third parties, even cohabitants, is not permitted."

It concludes by stating that "courier companies only have information about the person to whom the order is directed and instructions to carry out secure delivery by verifying the ID of the interested party, not providing them, by my client, access to information about the contents of the transported package."

THIRD: On June 2, 2022, in accordance with Article 65 of the LOPDGDD, the claim filed by the claimant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

On June 28, 2022, responses to the information request were received at the AEPD, submitted on behalf of GLS, which provided, among other information, the following:

1. The sender of both shipments is INTERBOX.

2. Regarding the shipment of CLAIMANT 2, it is indicated that the service for photocopying the identification document has been contracted.

Thus, GLS identified the recipient of the shipment and took a photograph of the document with which the person who picked up the shipment identified themselves. And it provides

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copy on both sides of the same foreign document that was submitted in his claim by CLAIMANT 2.

3. Regarding the instructions for delivering the package of CLAIMANT 2, they indicate that

“The client's instructions regarding the shipment are recorded in the section

'Observations' of Document 1. In this section, the last 4 digits and letter of the identity document of the person to whom the shipment should be delivered are indicated.”

And a screenshot of the shipment document for CLAIMANT 2 is provided, in which it can be observed that, in the 'Observations' section, the last 4 digits and the letter of the ID of CLAIMANT 2 appear as personal data of the client, along with the indication “Exclusive delivery ID”; in the 'Destination' data of that shipment document, the contact details, address, and full name of the shipment's destination appear, but the ID number is not included.

The full name and ID number of CLAIMANT 2 do appear in the data referring to the collection of the shipment made on 02/15/2022 at 16:24 hours.

4. Regarding the shipment of CLAIMANT 1, it is indicated that they have contracted “Identificate service which does not require taking photographs of identity documents, but only involves the courier verifying that the identity document shown by the recipient matches the one indicated by the client.”

And a copy of the delivery receipt is provided, in which it can be observed that the identity number of CLAIMANT 1 (which matches the identity number that the claimant indicated when submitting their claim to the AEPD) only appears, along with their full name, in the 'Received and agreed' section along with the collection date of 12/07/2021 at 9:18 hours.

5. A copy of the shipment document for CLAIMANT 1 is provided, in which, in the 'Observations' section, the indication of “Exclusive delivery ID” appears, and the last 4 digits and the letter of the identity document of CLAIMANT 1 are indicated; in the 'Destination' data of that shipment document, the contact details, address, and full name of the shipment's destination appear, but the ID number is not included.

The full name and ID number of CLAIMANT 1 do appear in the data referring to the collection of the shipment made on 12/07/2021 at 09:18 hours.

6. Regarding the individuals who had access to the shipment data, the following is indicated:

“The activity of postal and parcel transport companies implies that shipments are managed by numerous operators in the various phases of logistics and transport (receipt, unloading, classification, packaging, loading...). Consequently, we proceed to detail all the functions and providers that have accessed the label data necessary for delivery to the recipient. First, a provider transports the shipments from the Interbox facilities to our hub in Madrid.

Subsequently, the operators unload, classify, and package the goods on pallets for transport by

another provider to the delivery platforms (area where it will be delivered to the recipient).

After this, the collaborating company, which is listed as "Destination: Llica – N20" in Document 1, is responsible for delivering the shipments to the recipient. In addition to the functions already detailed, data can also be accessed from Customer Service to manage any incidents related to the shipment. All those who had access to the claimant's personal data did so either to manage its transport or to manage incidents arising from it."

And a screenshot of the "Operational Trackings" of both shipments is provided, in which all the actions that have been performed on each shipment from its departure to its delivery can be observed; each of these actions has a code indicating who performed the action.

7. Regarding the collection of shipments at the delivery company's offices instead of at the claimants' homes, it is indicated that, in both cases, it is recorded that the claimants indicated it this way. And tracking data for both shipments is provided, which shows the following incident:

- In the shipment of CLAIMANT 1: "SOLUTION PROVIDED BY THE CLIENT" noted on the date of 12/04/2021 at 23:10 hours.

- In the shipment of CLAIMANT 2: "SOLUTION PROVIDED BY THE RECIPIENT" noted on the date of 02/15/2022 at 8:00 hours.

On June 30, 2022, a written response to the request for information is received at the AEPD, submitted on behalf of XFERA CONSUMER FINANCE, in which the following information is provided, among others:

8. Indication that they cannot provide access data to the claimants' data because "having consulted the areas involved in customer management within Xfera Consumer Finance Establecimiento Financiero de Crédito S.A. and which are the ones that can review the Customer Databases within my principal's systems, my principal assures that they have no record or registration of the claimants within their systems, nor have they made any financing to these claimants."

9. A thread of emails in which the Operations Director of XFERA CONSUMER FINANCE indicates that "I confirm that these clients have never been clients of Xfera CF and we have never received any request in the name of any of them (that

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we could reject, for example). Therefore, it can be confirmed that no person from Xfera CF has had access to your data."

10. Screenshots of two searches in the customer database of XFERA CONSUMER FINANCE where the result "The customer does not exist" is observed. In these searches, it is noted that they were conducted by entering in the "NIF/CIF" field two identity numbers similar to those of the claimants but not exactly the same.

Thus, in one search, a number is used that belongs to CLAIMANT 2 with a zero added in front; and the other search is conducted with a number that belongs to CLAIMANT 1 with a zero inserted between the first letter and the first number of their identification number.

On July 4, 2022, responses to information requests were received at the AEPD, submitted on behalf of INTERBOX, which included, among other things, the following information:

11. Indication that "INTERBOX has a logistics platform (hereinafter, "Platform") for managing orders from Xfera Móviles, S.A., which is accessed via username and password. However, this Platform does not have an access log that allows for verification of which specific users accessed the personal data of the claimant within the indicated date range."

12. Indication of the individuals who had permissions to access the logistics platform at the time of the shipments indicated in the claims. The profiles that had access and the justification for their access are as follows:

- With access to all modules:

- Operations Director for Grupo Más Móvil: Access for review and control of problems or incidents and for data reporting.

- Management Control Area: Access for review and control of problems or incidents and for data reporting.

- Billing and Settlements Area: Access for tracking orders, their status, verification of settlements, order cross-checks, order statuses, and billing with Más Móvil.

- Purchasing Area: Access for creating new references, purchase orders, registering incoming goods in the warehouse, and integrating goods into stock.
- Logistics Area: Access for stock control of various virtual warehouses, transfers between physical warehouses, and managing order deliveries with different courier agencies.
- Reverse Logistics Area: Access for managing incidents in pickups and claims from the Más Móvil customer service center.
- With restricted access to the information necessary for the performance of their functions:
- Accounting Department: Access to customer data, purchases, orders, billing, and returns to review or verify any data to confirm that it is correctly registered in our management ERP.
- After-sales Department: Access to valued stock data, orders, and returns to process damaged orders with transport agencies.
- Warehouse Manager for the Canary Islands: Access to stock transfer data between physical warehouses, so that when goods are transferred to the Canary Islands, they can be logged in.

13. Copy of the Annex to the contract between GLS and INTERBOX, dated April 23, 2019, and appearing to be signed, titled "ANNEX I. HIRING OF THE "DNI+Photo" SERVICE FOR CLIENTS OF GENERAL LOGISTICS SYSTEMS SPAIN S.A."

This annex states, among other clauses:

- "FOURTH. – The courier or delivery person, at the time of delivering the goods, will take a photograph of the ID, with the purpose of providing it along with the POD (Proof of Delivery) to the Client and to confirm that there is a correct correlation between the identity of the recipient and the person indicated by the Client for the delivery, both documents must be sent to the Client requesting this service."
- "FIFTH. - The Client, by signing this Annex I, expresses their agreement regarding the request for the courier or delivery person to take a photo of the ID of the package recipient, who, in case of refusing to show it, will not receive the goods. The final consumer is informed of this aspect."

On July 6, 2022, a response to the information request was received at the AEPD, submitted on behalf of XFERA, which included, among other things, the following information:

14. Indication that "In Qvantel is where the hiring of the terminal, financing, contracting information, etc., is registered, and from where the order is issued that is managed in Lola."

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In Qvantel, no information is collected regarding the shipment, the logistics company, shipment tracking, or the distribution center to which the package will be sent.

15. Indication that

"In Lola, only the necessary data to manage the order and shipment of the terminal is processed, which is provided to Interbox (Orderbox) for management, including recipient, address, ID number, phone number, and terminal code to be sent, etc. Access to, for example, the copy of the customer's ID is not possible through Lola. The terminals leave the Interbox warehouse, and the orders are prepared from there. Lola also allows tracking with the information reported by Interbox with the order tracking."

16. Indication that

"Access to the data, both in Qvantel and in Lola, is logged, which, due to the large number of accesses and operations performed daily, is retained for a determined period, except in the case of detecting an incident, in which case it is preserved for investigative purposes for as long as necessary. The retention period for logs in Qvantel is 6 months, and in Lola, it is 3 months. These periods have been established based on the type of data processed and the process in which they are involved."

17. Indication that the traces of the Lola system are not retained due to the fact that more than 3 months have passed since the shipments on the date the information request was received.

However, recipients can only make changes to the delivery location through the GLS website by entering the following shipment information: the shipment identification number and the postal code.

Changes to the delivery location can only be made between the points offered by GLS, namely, ParcelShop or Agencies. In the cases at hand, the individuals who requested the change of delivery location necessarily knew the shipment identification number and the postal code related to both claimants. This information is known by Interbox and the recipients themselves (and the latter, precisely because Interbox, and not GLS, would have provided it), as well as by others involved in the shipment, such as the company that is a customer of Interbox and is subject to telecommunications regulations, for example, Xfera Móviles (Yoigo). The entity being claimed against indicates that it never sent any communication to the claimants, which reinforces the security measures that prevent the shipment identification number or the postal code from being obtained through GLS.

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The delivery location change systems are equipped with the appropriate guarantees in compliance with data protection regulations, and there is no indication in GLS systems of any lack of legitimacy regarding the requests for changes. Therefore, any unauthorized change of delivery location by the recipients has occurred outside the sphere of GLS and its collaborating entities and is unrelated to GLS systems, which, it is reiterated, have not been compromised.

All of the above asserts that both the change of delivery location and the processing of data resulting from that change were lawful and legitimate for GLS, as well as for its collaborating entities.

No unlawful processing occurred in the context of GLS, which received a legitimate modification order, with individuals outside the GLS organization having the capacity to execute those changes.

FIFTH: On March 3, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6 of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement in which, in summary, it stated that GLS systems allow for changes in the delivery location by the recipient.

SEVENTH: On May 8, 2023, the instructor of the proceedings agreed to reproduce for evidentiary purposes the complaint filed by A.A.A. and B.B.B., along with its documentation, the documents obtained and generated during the admission phase of the complaint, and the report of prior investigative actions that are part of the proceedings.

Additionally, the allegations regarding the initiation agreement of the referenced sanctioning procedure, submitted by GENERAL LOGISTICS SYSTEMS SPAIN, S.A., and the accompanying documentation are also reproduced for evidentiary purposes.

EIGHTH: On May 26, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction GENERAL LOGISTICS SYSTEMS SPAIN, S.A., with NIF A61441523, for a first infringement of Article 6 of the GDPR, classified in Article 83.5.b) of the GDPR and for prescription purposes, under Article 72.1 b) of the LOPDGDD for the processing of personal data of claimant 1 without legitimacy, with a fine of €70,000 (seventy thousand euros), and for a second infringement of Article 6 of the GDPR, classified in Article 83.5.b) of the GDPR and for prescription purposes, under Article 72.1 b) of the LOPDGDD for the processing of personal data of claimant 2 without legitimacy, with a fine of €70,000 (seventy thousand euros), totaling €140,000 (one hundred forty thousand euros).

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NINTH: On June 14, 2023, the following allegations were presented regarding the proposed resolution:

- GLS does not have a contractual relationship with the Claimants, therefore it has not been able to modify contractual conditions of which it is not a part and that, moreover, it is unaware of.
- GLS has a commercial relationship with Interbox Technology, S.L. ("Interbox") and acts in accordance with the obligations assumed towards Interbox and under the instructions received from Interbox.
- GLS has strictly followed the delivery procedures in relation to the various delivery locations (at home or at the headquarters of collaborating entities) and in accordance with the different identification modalities contracted by Interbox.
- GLS has not modified the delivery location, as GLS received an external and legitimate request for a change of delivery location through the enabled mechanisms. The request was valid and occurred outside of GLS, and the AEPD has not evidenced otherwise in the Proposal.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The two claimants each purchased a mobile terminal from XFERA, agreeing with that entity that these terminals would be sent to their home via a courier company; however, the claimants found that someone went to collect them at the courier company's headquarters instead of delivering them to their home.

Claimant 1, despite having expressly indicated home delivery, received the terminal at the courier company's headquarters, and only required to provide their name and ID number for receipt.

Claimant 2, who despite having expressly requested home delivery, received the terminal at the headquarters, supposedly collected by an impersonator of the claimant, who was able to collect it using a presumably false document, as it has the format of a "Foreign Identification Document," while its numbering corresponds to that of Claimant 2's National Identity Document, and the photograph inserted in the document does not match the actual ID of that claimant (nor do the postal addresses of both documents match).

SECOND: The entity being claimed indicates that GLS's systems allow for changes in the delivery location by the recipient, but that these changes can only be made through the GLS website by entering the following shipment information: the shipment identification number and the postal code. In this regard, GLS asserts that it never sent any communication to the claimants, which reinforces the security measures that prevent the shipment identification number or postal code from being obtained through GLS.

LEGAL GROUNDS

I

According to the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

It is necessary to point out that Article 4.1 of the GDPR defines: "personal data" as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

On the other hand, verifying the identity for the delivery of the mobile terminal involves the processing of the personal data of its holder, as an identifiable natural person is one whose identity can be determined, directly or indirectly, in particular by reference to an identifier (Article 4.1 of the GDPR). According to Article 4.7 of the GDPR, the "data controller" or "controller" is defined as the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the

purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing.

In this case, it has been established that the claimants each acquired a terminal at a store of XFERA MÓVILES, which were sent by INTERBOX, an entity that has subcontracted the courier services with GLS (the entity being claimed), therefore it is this latter entity that is responsible for processing the data necessary for the management and delivery of the shipments to their recipients.

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III

Article 6.1 of the LOPDGDD establishes that “in accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, consent of the data subject is understood as any manifestation of free, specific, informed, and unequivocal will by which the data subject accepts, either by means of a declaration or a clear affirmative action, the processing of personal data concerning them.”

For its part, Article 6 of the GDPR establishes the following:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

IV

In the present case, the two claimants have acquired a mobile device from XFERA, which is sent to them via a courier service, and the claimants find that someone has gone to collect them at the courier company's headquarters, instead of delivering them at home as they had agreed when making the purchase.

We must take into account that the punishable facts in this case are that the conditions of the purchase contract were changed without having the legitimacy to do so.

In its defense, GLS states that it has no contractual relationship with the claimants, but rather has a commercial contract with Interbox Technology, S.L.

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The entity being claimed against asserts that it has acted in accordance with the obligations assumed towards Interbox and under the instructions received from Interbox, so as it does not have a contractual relationship with the Claimants, it could not modify the contractual conditions of a contract of which it is not a party.

GLS therefore states that it has not modified the delivery location, but rather that what happened is that it received an external and legitimate request for a change of delivery location through the

mechanisms enabled for this purpose.

From the investigative actions carried out by this Agency, it has been confirmed, regarding Claimant 2, that the device was collected with an apparently false identification document, and regarding Claimant 1, it was only required for delivery that they indicate their correct name and ID number.

The most significant aspect in this case is that both claimants requested home delivery, and despite this, the courier company delivered it to a store, providing as justification only a screenshot from their systems indicating that the recipient offered to go to the store.

In this regard, it should be noted that, having designated home delivery as the method of receipt for the shipment, the modification of this method has increased the risk that the shipments may have been received by someone who is not directly the owner.

Indeed, delivery to the recipient's home provides an additional guarantee that this possibility does not occur. This factor facilitated that the shipments may have been delivered to persons who did not correspond to the true recipients of the same.

In fact, as indicated in the background, in the case of CLAIMANT 2, it has been subsequently verified that the shipment was supposedly collected by an impersonator of the claimant's identity, since they were able to collect it using a presumably false document, as it has the format of "Foreign Identification Document," when its numbering corresponds to that of the National Identity Document of CLAIMANT 2.

Moreover, the photograph inserted in the document does not match the actual ID of that claimant (nor do the postal addresses of both documents match).

Therefore, in accordance with the evidence available, it is considered that the entity being claimed against has modified the conditions of the claimants' contract without their consent, nor any other cause of legitimacy that allows for its processing, by requesting the change of the delivery location of the device, which constitutes a violation of Article 6 of the GDPR.

V

Article 72.1 b) of the LOPDGDD states that "based on what is established in Article 83.5 of Regulation (EU) 2016/679, very serious violations shall be considered and shall prescribe."

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three years the infringements that constitute a substantial violation of the articles mentioned therein and in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing set out in Article 6 of Regulation (EU) 2016/679.

VI

Article 58.2 of the GDPR states the following: "Each supervisory authority shall have all of the following corrective powers:

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time;

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each particular case;

In this context, the respondent may be ordered to carry out the necessary actions within the designated time frame to ensure that the processing of the personal data used complies with the provisions of the GDPR.

VII

These infringements may be sanctioned with a fine of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5 of the GDPR.

Furthermore, it is considered appropriate to adjust the sanction to be imposed in accordance with the following criteria established in Article 83.2 of the GDPR, considering as an aggravating factor the intentional action of the respondent in using the data of each complainant (Article 83.2 b).

In accordance with Article 83.2 k of the GDPR, the link between the infringer's activity and the processing of personal data (Article 76.2 b of the LOPDGDD) may also be taken into account as an aggravating factor, since the business object of the respondent entity inevitably requires the processing of personal data.

Therefore, in accordance with the applicable legislation and having assessed the criteria for adjusting the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on GENERAL LOGISTICS SYSTEMS SPAIN, S.A., with NIF A61441523, for a first infringement of Article 6 of the GDPR, classified under Article 83.5.b) of the GDPR and for prescription purposes, under Article 72.1 b) of the LOPDGDD for the processing of personal data of complainant 1 without legitimacy, a fine of €70,000 (seventy thousand euros), and for a second infringement of Article 6 of the GDPR, classified under Article 83.5.b) of the GDPR and for prescription purposes, under Article 72.1 b) of the LOPDGDD for the processing of personal data of complainant 2 without legitimacy, a fine of €70,000 (seventy thousand euros), making a total of €140,000 (one hundred forty thousand euros).

SECOND: NOTIFY this resolution to GENERAL LOGISTICS SYSTEMS SPAIN, S.A.

THIRD: Warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, presenting it through

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of the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

The documentation that certifies the effective filing of the contentious-administrative appeal must also be submitted to the Agency. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the precautionary suspension to be concluded.

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